Comprehensive Analysis of Voluntary Compliance and Late Filing Procedures for PIT-38 in Poland (2023-2024)

Introduction to the Regulatory Landscape for Virtual Currencies

The taxation of virtual currencies in Poland operates under a highly formalized regulatory framework governed primarily by the Personal Income Tax (PIT) Act, the Tax Ordinance (Ordynacja podatkowa), and the Penal Fiscal Code (Kodeks karny skarbowy - KKS). For an individual who became a Polish tax resident around 2023—having relocated from a jurisdiction such as Sweden—navigating the transition into the Polish tax system presents significant compliance challenges. The Polish tax authority, the National Revenue Administration (Krajowa Administracja Skarbowa - KAS), classifies income derived from the disposal of virtual currencies as capital gains, subject to a flat tax rate of 19%.[1] Crucially, this income must be declared exclusively on the PIT-38 form, entirely separate from standard employment or business income reported on forms such as PIT-37 or PIT-36.[3]

The subject of this analysis is a taxpayer who conducted cryptocurrency-to-fiat disposals generating approximately 146,000 PLN in net income during the 2023 fiscal year, and approximately 3,000 PLN in net income during the 2024 fiscal year. The statutory deadline for the submission of the 2023 PIT-38 and the corresponding tax payment was April 30, 2024.[4] The deadline for the 2024 fiscal year elapsed on April 30, 2025.[4] As of the current period in March 2026, the taxpayer is in a state of extended default for both tax years. This report provides an exhaustive, step-by-step operational and legal blueprint for voluntarily regularizing these unfiled tax obligations, calculating accrued default interest, and deploying statutory mechanisms to completely neutralize severe penal fiscal exposure.

1. The Legal Classification of the Missing PIT-38 Declarations

A fundamental question arises regarding whether the submission of the overdue PIT-38 declarations in March 2026 constitutes a "first-time filing" or a "correction" (korekta). The answer dictates the procedural pathway within the governmental digital infrastructure and is contingent upon the mechanics of the *Twój e-PIT* system.

1.1. The Mechanics of the Twój e-PIT System and Auto-Acceptance

The Ministry of Finance operates the *Twój e-PIT* platform, which automatically generates annual tax returns for taxpayers based on information supplied by domestic remitters, such as

employers and brokerage houses issuing PIT-11 and PIT-8C forms.[5] According to the statutory architecture of this system, if a taxpayer does not manually review, modify, or reject the auto-generated PIT-37 or PIT-38 forms by the statutory deadline of April 30, the system automatically accepts these drafts as final, legally binding tax returns.[4]

Because foreign cryptocurrency exchanges, and indeed many domestic platforms, are not obliged to issue standard PIT-8C forms to Polish residents, the *Twój e-PIT* system generally generates a PIT-38 form for a crypto investor that is entirely blank or populated with zeroes regarding virtual currency revenues.[5] If the taxpayer took no action by April 30, 2024 (for the 2023 tax year) and April 30, 2025 (for the 2024 tax year), the system automatically filed these empty PIT-38 forms on their behalf.[6]

Consequently, the act of submitting the cryptocurrency income data now is legally treated as a correction of a tax return (korekta zeznania), rather than an original filing.[6] The taxpayer is modifying a return that already exists within the central database. When executing this filing, the taxpayer must explicitly check the box designated for "korekta zeznania" located in Section A, Box 6 of the PIT-38 form.[6]

1.2. Interplay Between PIT-36/37 and PIT-38 Corrections

In scenarios where a taxpayer has already filed a PIT-36 or PIT-37 for standard income but omitted the PIT-38, it is vital to understand that the Polish tax system treats these forms as completely independent declarations.[3] The PIT-38 is not an attachment or a sub-section of the PIT-37; it is a standalone document designated specifically for capital gains and cryptocurrency transactions.[4]

If a taxpayer discovers errors in both their employment income and their cryptocurrency income for the same fiscal year, they must file two separate corrections: one for the PIT-37 and a distinct correction for the PIT-38.[11] The correction of one form does not legally impact or invalidate the other. The system permits simultaneous corrections, provided they are submitted through the appropriate dedicated forms within the *e-Urząd Skarbowy* portal.[11]

1.3. Statutory Limits on the Number of Corrections

Polish tax law does not impose any quantitative restriction on the number of corrections a taxpayer may file for a given tax year. A taxpayer could theoretically correct their PIT-38 multiple times if new historical transaction data is continuously discovered.[10] The only constraint on the right to file a correction is temporal, dictated by the expiration of the tax liability itself.

2. The Statute of Limitations for Tax Obligations (Przedawnienie)

The right of the National Revenue Administration to audit, assess, and enforce tax liabilities is not infinite. It is constrained by the statute of limitations outlined in the Tax Ordinance. The tax

office cannot perpetually go back in time to scrutinize a taxpayer's historical financial activities.

2.1. Calculation of the Limitation Period

Under Article 70 § 1 of the Tax Ordinance, a tax liability expires upon the passage of five years, counted from the end of the calendar year in which the statutory deadline for the payment of the tax elapsed.[10] This calculation method effectively extends the limitation period beyond a literal five-year span.

For the fiscal year 2023, the deadline to file the PIT-38 and remit the applicable tax was April 30, 2024.[4] The five-year countdown, therefore, commences on December 31, 2024. Barring any circumstances that suspend or interrupt this period, the tax liability for 2023 will expire at midnight on December 31, 2029.[10]

For the fiscal year 2024, the filing and payment deadline elapsed on April 30, 2025.[4] The five-year countdown begins on December 31, 2025, and the obligation will legally expire on December 31, 2030.[10] Given that the current date is March 2026, both the 2023 and 2024 fiscal years remain entirely open to investigative scrutiny, formal audits, and aggressive penal fiscal enforcement by the tax authorities.[13]

2.2. Suspension and Interruption Mechanisms

Taxpayers must be acutely aware that the five-year limitation period is not absolute. The Tax Ordinance outlines specific events that can either interrupt (przerwanie) or suspend (zawieszenie) the running of this clock.[13]

An interruption causes the five-year period to reset and begin anew. This typically occurs when the tax authority initiates administrative enforcement measures, such as applying an enforcement measure of which the taxpayer is notified.[13] Conversely, a suspension simply pauses the clock. The most critical trigger for suspension is the formal initiation of penal fiscal proceedings (postępowanie karne skarbowe) related to the specific tax liability.[13] If the tax office suspects tax evasion and opens a KKS investigation before December 31, 2029, the statute of limitations for the 2023 tax year will be suspended indefinitely while the investigation is ongoing, effectively granting the authority unlimited time to pursue the matter.[13] This severe procedural mechanism highlights the extreme risk of relying on the passage of time rather than actively regularizing the compliance failure.

3. Penal Fiscal Exposure: The Divergence Between Misdemeanors and Crimes

The failure to declare cryptocurrency income and remit the corresponding 19% tax is prosecuted aggressively under the Penal Fiscal Code (KKS). The Polish tax authorities do not differentiate between cryptocurrency tax evasion and traditional fiat tax evasion; both are treated as deliberate attempts to defraud the State Treasury.[7] The severity of the penal consequences depends entirely on the monetary value of the unpaid tax, which dictates

whether the act is classified as a fiscal misdemeanor (wykroczenie skarbowe) or a severe fiscal crime (przestępstwo skarbowe).[7]

3.1. The Critical Role of the Minimum Wage

The statutory threshold separating a fiscal misdemeanor from a fiscal crime is dynamically linked to the national minimum wage.[14] Specifically, if the amount of the depleted public law liability (the unpaid tax) exceeds five times the minimum wage in effect at the time the act is judged, the offense is elevated to a fiscal crime.[15]

As of January 1, 2026, the minimum gross wage in Poland is set at 4,806 PLN.[16] Consequently, the critical threshold for the current year is calculated as five multiplied by 4,806 PLN, resulting in a strict demarcation line of 24,030 PLN.[15]

Offense Classification	**Tax Depletion Amount (2026 Threshold)**	**Primary Adjudication Method**
Fiscal Misdemeanor	Up to 24,030 PLN	Penal Mandate or Court Judgment
Fiscal Crime	Exceeding 24,030 PLN	Exclusively via Court Judgment

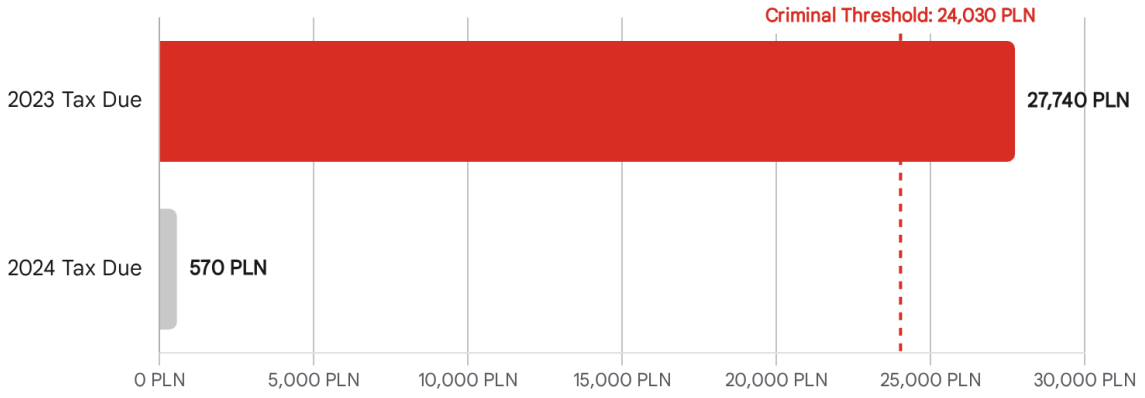
3.2. Taxpayer Specific Risk Assessment

The taxpayer's financial profile presents a bifurcated risk scenario, exposing them to both tiers of the penal fiscal system.

For the fiscal year 2024, the taxpayer realized approximately 3,000 PLN in net income. Applying the 19% flat rate, the unpaid tax amounts to roughly 570 PLN. Because this 570 PLN figure is significantly below the 24,030 PLN statutory threshold, the failure to file the 2024 PIT-38 is classified as a fiscal misdemeanor.[18]

For the fiscal year 2023, the taxpayer generated approximately 146,000 PLN in net income. The resulting 19% tax liability is approximately 27,740 PLN. Because 27,740 PLN strictly exceeds the 24,030 PLN threshold, the omission for the 2023 tax year is classified as a fiscal crime, triggering the most severe punitive measures available under Polish law.[18]

2023 Crypto Tax Arrears Exceed the Statutory Threshold for Fiscal Crimes



Under the Polish Penal Fiscal Code (KKS), tax evasion exceeding five times the minimum wage (24,030 PLN in 2026) elevates the offense from a misdemeanor to a crime, subjecting the perpetrator to significantly harsher penalties.

Data sources: Ministerstwo Rodziny, GazetaPrawna.pl, PITax

3.3. The Spectrum of Statutory Fines

If the tax authority detects these omissions prior to any voluntary rectification by the taxpayer, the financial and personal consequences are profound.

For the 2024 fiscal misdemeanor, the authority may issue a penal mandate (mandat karny skarbowy). The maximum fine imposed via a mandate is capped at five times the minimum wage, equating to 24,030 PLN in 2026.[19] If the taxpayer refuses the mandate and the case proceeds to a formal court hearing, the judge can impose a fine ranging from one-tenth of the minimum wage (480.60 PLN) up to twenty times the minimum wage (96,120 PLN).[19]

For the 2023 fiscal crime, the penalty structure is vastly more aggressive and relies on the "daily rate" (stawka dzienna) system, which is exclusively adjudicated by a court.[15] The court first determines the number of daily rates applicable to the severity of the crime, ranging from a minimum of 10 to a maximum of 720 daily rates.[20] Subsequently, the court determines the financial value of a single daily rate based on the perpetrator's individual financial situation, income potential, and family circumstances.[15] In 2026, a single daily rate cannot be lower than one-thirtieth of the minimum wage (160.20 PLN) and cannot exceed four hundred times that fraction (64,080 PLN).[20]

Fiscal Crime Fine Parameters (2026)	Daily Rates	Financial Value (PLN)
Minimum Allowable Fine	10 rates	1,602 PLN
Maximum Theoretical Fine	720 rates	46,137,600 PLN

Furthermore, fiscal crimes carry the potential for custodial sentences, meaning the taxpayer faces the risk of imprisonment for up to five years alongside the astronomical financial fines.[7] Given this existential threat to the taxpayer's financial stability and personal freedom, engaging the statutory mechanisms to secure immunity is imperative.

4. The Doctrine of Active Remorse (Czynny Żal)

Polish penal fiscal law provides a unique and powerful mechanism for perpetrators to unilaterally extinguish their criminal liability. This mechanism is known as *czynny żal* (active remorse), codified in Article 16 of the Penal Fiscal Code.[21]

4.1. Absolute Immunity vs. Penalty Reduction

A common misconception among taxpayers is that a voluntary disclosure merely serves as a mitigating factor to reduce the eventual fine. This is fundamentally incorrect. If a *czynny żal* is executed correctly and satisfies all statutory conditions, it completely eliminates the penal fiscal liability.[21] It acts as an absolute shield, rendering the perpetrator immune from prosecution, fines, or imprisonment for the specific act disclosed.[21] The taxpayer will only be required to pay the outstanding tax and the standard default interest, effectively transforming a criminal matter into a standard administrative settlement.[6]

4.2. Mandatory Conditions for Effectiveness

The protective shield of active remorse is not granted automatically upon submission. The tax authority meticulously evaluates the disclosure against stringent criteria. For the *czynny żal* to be legally binding, the following conditions must be met synchronously:

1. The Principle of Spontaneity: The disclosure must reach the competent tax authority before the authority has clearly documented the offense or initiated any formal detection activities.[23] Detection activities include formal tax audits, unannounced searches, or standard verification activities (czynności sprawdzające) aimed at uncovering the specific violation.[23] If the taxpayer waits until they receive a summons or an inquiry letter from the tax office regarding missing cryptocurrency declarations, the opportunity to file a valid *czynny żal* is

permanently extinguished.[4] The notification must be a genuine, preemptive admission of guilt.

2. The Principle of Full Disclosure: The written notification must reveal the essential circumstances of the prohibited act.[21] The taxpayer must explain exactly what occurred, identifying the specific tax forms omitted and the fiscal years involved.[25] If the offense was committed in collusion with third parties (such as a conspiratorial accountant or a business partner), the taxpayer must disclose their identities.[21] However, for an individual cryptocurrency investor, this typically involves a simple declaration that no third parties were involved.[28]

3. The Principle of Restitution: The most critical material condition for the effectiveness of active remorse is restitution. Article 16 § 2 of the KKS mandates that the taxpayer must fully pay the depleted public law liability—meaning the entirety of the overdue principal tax—along with all accrued statutory default interest.[21] This payment must be executed either simultaneously with the submission of the *czynny żal* or within a strict, non-negotiable timeframe designated by the authority.[21]

4.3. The Danger of Prior Consultation

Given the complexity of the process, taxpayers frequently inquire whether it is advisable to consult informally with their local tax office prior to submitting the late PIT-38 and the *czynny żal*. From a legal strategy perspective, this is highly ill-advised.

Approaching a tax official to discuss an unfiled crypto tax liability effectively provides the authority with a "clearly documented message" regarding the commission of a fiscal offense. If the official logs this interaction or initiates a formal verification protocol based on the conversation before the taxpayer formally registers the *czynny żal* in the digital system, the taxpayer's admission loses its necessary spontaneity.[23] The correct approach is strict operational silence: compile the data, calculate the liabilities, execute the payments, and submit the formal legal documents without any prior warning or informal negotiation with the tax office.

4.4. Structural Requirements of the Notification Document

The Penal Fiscal Code does not mandate an official, standardized governmental form for the *czynny żal*.[25] It is inherently a free-form legal letter, but its validity hinges on the inclusion of highly specific information.[25]

A compliant *czynny żal* document must contain the following elements:

- **Precise Identification:** The taxpayer's full name, PESEL (national identification number), and registered residential address.[25]
- **Competent Addressee:** The letter must be directed to the Naczelnik Urzędu Skarbowego (Head of the local Tax Office) holding geographic jurisdiction over the taxpayer's residence (e.g., the appropriate office in the Masovian Voivodeship).[25]
- **Statutory Invocation:** The document should explicitly reference Article 16 § 1 of the Penal Fiscal Code as the legal basis for the notification.[24]
- **Factual Description:** A transparent description of the omission, specifically identifying

the failure to submit the PIT-38 declarations for the fiscal years 2023 and 2024, and the resulting failure to remit the 19% capital gains tax on virtual currency disposals.[25]

- **Contextual Justification:** A brief, non-incriminating explanation indicating that the error was entirely unintentional. In this context, the taxpayer can cite the severe complexity of Polish cryptocurrency regulations, jurisdictional confusion arising from their recent relocation from Sweden, and previous tracking software failures.[24]
- **Declaration of Independence:** An explicit statement confirming that the taxpayer acted alone and did not collaborate with, or incite, any third parties to commit the offense.[25]
- **Proof of Restitution:** A definitive declaration that the omission has been fully rectified prior to the submission of the letter. This is achieved by stating that the required corrections to the PIT-38 have been transmitted via the e-Deklaracje system, and that the total principal tax and all accrued default interest have been transferred to the taxpayer's individual tax micro-account.[24]

5. The Dynamics of Default Interest (Odsetki za zwłokę)

Securing the protection of active remorse requires the taxpayer to calculate and remit the exact amount of statutory default interest. The tax authority will not accept an approximation, and an underpayment of interest invalidates the restitution requirement. Interest calculation in Poland is a complex procedure owing to the dynamic nature of the base rates determined by macroeconomic policy.

5.1. Mathematical Framework and Current Rates

According to Article 56 § 1 of the Tax Ordinance, the basic interest rate for tax arrears is formulated as the sum of 200% of the Lombard rate established by the National Bank of Poland (NBP), plus a static margin of 2%.[30] The statute also includes a hard floor, dictating that the rate can never fall below 8% per annum.[30]

The NBP's Monetary Policy Council frequently adjusts the Lombard rate in response to inflationary pressures. Most recently, on March 4, 2026, the Council lowered the Lombard rate to 4.25%.[30] Consequently, applying the statutory formula:

$$(4.25\% \times 200\%) + 2\% = 10.50\%$$

The current basic interest rate for tax arrears, effective from March 5, 2026, is exactly 10.50% per annum.[30]

5.2. Historical Rate Segmentation for the Delay Period

The taxpayer's delay spans a significant chronological period, stretching from May 2024 to the present day in March 2026. During this timeframe, the basic tax interest rate fluctuated multiple times.[30] To compute the total interest liability accurately, the taxpayer must segment the debt

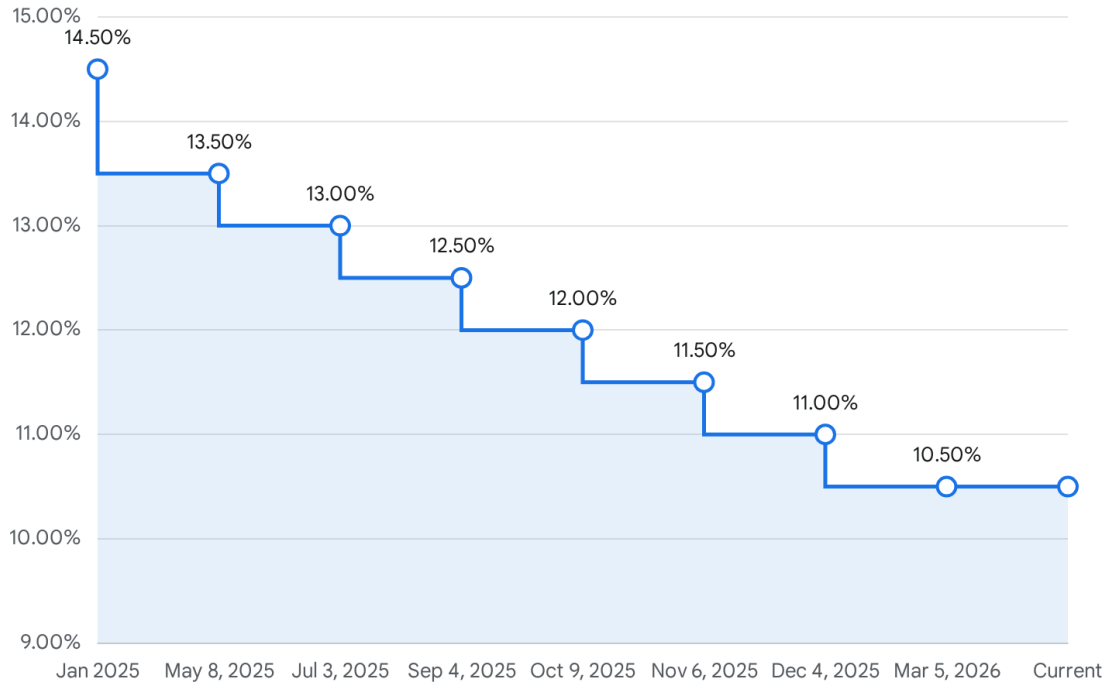
into distinct chronological blocks and apply the corresponding rate to the exact number of days within each block.[30]

The historical rates applicable to the taxpayer's period of default are as follows:

Chronological Period	**Active Basic Interest Rate (Per Annum)**
Prior to May 8, 2025	14.50%
May 8, 2025 – July 2, 2025	13.50%
July 3, 2025 – September 3, 2025	13.00%
September 4, 2025 – October 8, 2025	12.50%
October 9, 2025 – November 5, 2025	12.00%
November 6, 2025 – December 3, 2025	11.50%
December 4, 2025 – March 4, 2026	11.00%
From March 5, 2026 onwards	10.50%

Tax Arrears Interest Rates Have Steadily Declined Since Early 2025

STATUTORY INTEREST RATE ON TAX ARREARS (%)



When calculating the total interest owed on the 2023 and 2024 PIT-38 arrears, the taxpayer must apply these precise historical rates to the respective days of the delay. The current rate as of March 5, 2026, rests at 10.50%.

Data sources: Podatkowy Referat, e-pity.pl

5.3. Inapplicability of the Reduced Interest Rate

The Polish Tax Ordinance incorporates an incentive mechanism for rapid self-correction by offering a reduced interest rate, set at 50% of the basic rate (currently 5.25%).[10] To qualify for this substantial discount, a taxpayer must fulfill two simultaneous conditions: they must submit a valid correction to their tax declaration no later than 6 months after the original filing deadline, and they must pay the resulting arrears within 7 days of submitting that correction.[10]

Given that the statutory deadlines for the taxpayer's obligations were April 30, 2024, and April 30, 2025, the six-month windows for both fiscal years have permanently elapsed.[10] Therefore, the taxpayer is entirely disqualified from utilizing the reduced rate and must utilize the standard

basic rates for the entire duration of the delay.[31]

5.4. Calculation Rules and the Minor Amount Exemption

Interest accrual begins on the day immediately following the statutory payment deadline.[31] If the deadline fell on a weekend or public holiday, it is shifted to the next business day, and interest begins accruing the day after.[31] The accrual continues relentlessly until the exact date the funds are credited to the taxpayer's individual tax micro-account.[31]

Crucially, both the principal tax debt and the calculated interest must be mathematically rounded to the nearest full zloty.[31] Amounts ending in 49 groszy or less are rounded down, while amounts ending in 50 groszy or more are rounded up.[31]

The system provides a minor exemption designed to reduce administrative overhead: if the total calculated interest, prior to rounding, does not exceed 8.70 PLN, the taxpayer is not required to pay any interest.[31] This specific threshold represents three times the current cost of a registered mail delivery.[31] However, given the length of the taxpayer's delay and the principal amounts involved (even the smaller 570 PLN tax liability from 2024), the accrued interest will vastly exceed 8.70 PLN, meaning interest must be fully calculated and remitted for both tax years.

6. Liquidity Management: The Installment Agreement (Raty) Dilemma

Facing a principal tax liability of approximately 27,000 PLN for 2023, augmented by nearly two years of compound interest, the taxpayer may experience severe liquidity constraints. The tax system theoretically provides a relief valve through an installment payment plan, but this intersects dangerously with the requirements for active remorse.

6.1. The Mechanics of Form RAT-Z

Under Article 67a of the Tax Ordinance, a taxpayer facing financial hardship can petition the tax authority to distribute their tax arrears and accrued interest into a structured installment plan.[34] This requires the submission of the RAT-Z form, accompanied by extensive documentation proving the taxpayer's precarious financial, family, and asset situation.[34] The authority often requires the submission of the ORD-HZ form, which serves as an official declaration of real estate and significant movable assets, enabling the state to establish a compulsory mortgage or fiscal pledge as collateral for the installment agreement.[36]

The decision to grant an installment plan is highly discretionary. The head of the tax office will evaluate whether granting the relief serves an "important taxpayer interest" (e.g., preventing personal bankruptcy or severe deprivation) or the "public interest".[34]

6.2. The Irreconcilable Conflict with Czynny Żal

While an installment plan is a viable option for standard tax arrears, attempting to combine a

RAT-Z application with a *czynny żal* introduces critical legal jeopardy.

As previously established, the absolute effectiveness of active remorse hinges on the principle of restitution—the immediate and full payment of the depleted tax.[21] If a taxpayer submits a RAT-Z application, they are explicitly declaring their inability to execute immediate restitution. While some progressive tax offices might temporarily suspend enforcement pending the review of the RAT-Z application, relying on this bureaucratic goodwill is extremely dangerous when criminal liability is at stake.[29]

If the taxpayer submits the *czynny żal* alongside a RAT-Z request, and the tax office subsequently denies the installment plan—a common outcome due to the discretionary nature of the process—the *czynny żal* is immediately rendered void because the restitution requirement was not met.[21] The taxpayer has essentially provided the tax office with a signed confession of a fiscal crime without securing the protective immunity of active remorse, leaving them entirely exposed to prosecution and massive daily fines under the KKS.[21]

Consequently, standard legal strategy dictates that to guarantee immunity, the taxpayer must secure the necessary liquidity through private means and pay the entire tax and interest liability in a single tranche prior to, or concurrently with, the submission of the *czynny żal*.[29]

7. Digital Execution via e-Urząd Skarbowy

The entire process of voluntary compliance should be executed digitally. The Polish Ministry of Finance's *e-Urząd Skarbowy* portal provides the necessary tools to submit corrections and legal notifications instantaneously. Digital execution ensures an immediate, irrefutable timestamp, which is paramount when racing against the tax authority's potential detection activities.[26]

7.1. Submission of Corrections and the Role of the Tax Advisor

The first operational step within the portal involves amending the historical tax records. A licensed Tax Advisor (doradca podatkowy) is fully authorized to handle the complex calculations of cryptocurrency costs, revenues, and dynamic interest rates.[39] Using a standard UPL-1 power of attorney, the advisor can electronically transmit the corrected PIT-38 forms directly into the *Twój e-PIT* system on the taxpayer's behalf.[6]

Once the corrections are transmitted, the system generates an Official Receipt Certification (Urzędowe Poświadczenie Odbioru - UPO).[6] The UPO is the definitive legal proof that the corrections have been lodged into the government's database, and it must be retained as evidence.[6]

7.2. The Dangers of Delegating the Czynny Żal

While the tax advisor can seamlessly file the PIT-38 corrections, delegating the submission of the *czynny żal* carries severe risks. Article 16 of the KKS explicitly demands that the *perpetrator* (sprawca) of the fiscal offense notify the authority.[21]

If a tax advisor, acting under a general power of attorney, digitally signs and submits the active remorse letter, strictist interpretations by the tax office may classify the document merely as a notification of a crime submitted by a third party, rather than a voluntary admission of guilt by the actual perpetrator.[25] This semantic distinction completely strips the document of its protective power.[25]

Therefore, the optimal protocol requires the tax advisor to draft the highly technical content of the *czynny żal*, but the taxpayer must personally authenticate and submit the document using their own trusted profile (Profil Zaufany) or electronic banking credentials within their personal *e-Urząd Skarbowy* dashboard.[25]

7.3. Navigating the Portal and the ZGL_ZAL Pitfall

When the taxpayer logs into their personal *e-Urząd Skarbowy* account to submit the *czynny żal*, they must navigate to the general correspondence section and locate the specific digital form designated for reporting fiscal offenses, generally titled "Zawiadomienie o popełnieniu czynu zabronionego (czynny żal)".[26]

Taxpayers must exercise extreme caution not to select the similarly named form "ZGL_ZAL".[40] Despite the confusing acronym, the ZGL_ZAL form is strictly an administrative document utilized within the National e-Invoicing System (KSeF) to declare the intention to issue invoices with attachments.[40] Submitting an active remorse letter via the KSeF ZGL_ZAL form will result in the document being routed to the incorrect administrative department, causing critical delays and potentially invalidating the spontaneity of the disclosure if the main tax office initiates an audit in the interim.[40] The taxpayer must utilize the correct penal fiscal notification pathway, paste the drafted text, attach the PDFs of the UPOs and the banking transfer confirmations, and sign the document electronically.[26]

8. Strategic Blueprint and Sequence of Operations

To navigate this complex regularization process successfully, the sequencing of actions must be flawlessly orchestrated. A failure in the chronological order can trigger the exact penal consequences the taxpayer seeks to avoid. The entire sequence should ideally be completed within a single, highly coordinated business day.

Phase 1: Aggregation and Financial Liquidation The taxpayer and their advisor must consolidate all cryptocurrency transaction data from the Swedish and international exchanges covering the 2023 and 2024 periods.[1] The exact net income must be calculated, and the 19% flat tax liability isolated for each respective year.[2] Subsequently, utilizing the dynamic chronological rate tables, the precise default interest must be calculated down to the specific day the payment will be executed.[31]

Phase 2: Execution of Restitution The taxpayer must initiate a bank transfer to their individual tax micro-account (mikrorachunek podatkowy).[2] The transfer must cover the entire combined sum of the 2023 principal tax, the 2023 accrued interest, the 2024 principal tax, and the 2024 accrued interest.[2] The taxpayer must immediately generate and save the definitive PDF

confirmations of these banking transfers.[29]

Phase 3: Formalizing the Corrections Once the funds are in transit, the tax advisor (or the taxpayer directly) must access the *e-Urząd Skarbowy* portal.[6] They must navigate to the *Twój e-PIT* section, locate the auto-accepted PIT-38 forms for 2023 and 2024, select the "Koryguj" (Correct) function, input the newly calculated data, check the correction box, and submit the forms.[6] The generated UPOs must be downloaded immediately.[6]

Phase 4: Establishing the Protective Shield With the restitution executed and the corrections filed, the taxpayer must immediately log into their personal *e-Urząd Skarbowy* account.[26] Navigating strictly to the "Zawiadomienie o popełnieniu czynu zabronionego" form, they will input the text of the *czynny żal* drafted by the advisor.[26] The taxpayer will upload the UPOs proving the corrections and the banking PDFs proving restitution.[26] The taxpayer will then electronically sign and submit the notification, effectively neutralizing all penal fiscal risk.[26]

Conclusion

The decision to transition a complex cryptocurrency portfolio from Sweden to Poland without immediate adherence to the strict PIT-38 reporting requirements has placed the taxpayer in a precarious legal position. The expiration of the statutory deadlines for 2023 and 2024 has transformed standard administrative requirements into serious penal fiscal liabilities, with the 2023 omission crossing the minimum wage threshold to become a severe fiscal crime.[15]

Relying on the five-year statute of limitations is a catastrophic strategy given the rapid expansion of automated data exchange between foreign crypto exchanges and the Polish National Revenue Administration via mechanisms like the Common Reporting Standard.[1] If the tax authority algorithms detect the discrepancy before the taxpayer acts, the financial fines could theoretically reach tens of millions of zlotys under the daily rate system.[20]

However, by aggressively deploying the doctrine of active remorse (*czynny żal*), the taxpayer can unilaterally disarm this threat.[21] By meticulously calculating the dynamic default interest, avoiding the trap of installment negotiations, executing immediate restitution, and filing the requisite digital notifications in the exact chronological order outlined in this report, the taxpayer will secure absolute immunity from penal fiscal prosecution, achieving total compliance through a predictable, structured administrative process.

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